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Tentative Ruling

Re: **Jackson v. Mananian, et al.**
Superior Court Case No. 25CECG02600

Hearing Date: August 12, 2026 (Dept. 501)

Motion: by defendant Allstate Northbrook Indemnity Company
Demurring to the First Amended Complaint

Tentative Ruling:

To sustain, with leave to amend, the demurrer to the entirety of the operative complaint, the First Amended Complaint, for uncertainty and failure to state facts sufficient to constitute a cause of action. . (Code Civ. Proc., § 430.10, subds. (e), (f).)

Explanation:

Defendant Allstate Northbrook Indemnity Company ("Allstate") demurs to the entirety of the First Amended Complaint ("FAC") on the ground that the complaint fails to state a cause of action, and is uncertain.

While plaintiff may and does utilize the Judicial Council form complaint, the usage of the form does not change the statutory requirement that the complaint contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).)

Indeed, the complaint is uncertain and fails to allege facts sufficient to state a cause of action, as it is completely devoid of any facts to apprise defendant of the issues it is being asked to defend against. Since the FAC is devoid of any allegations against Allstate, it is unknown what injury plaintiff has suffered, when the injury occurred, and how Allstate has caused such injury.

The absence of fact in the FAC renders it impossible for the court to determine whether there is a reasonable possibility that the defects may be cured by amendment. An opposition is not filed to give light to this issue. Nonetheless, since the possibility that plaintiff can plead sufficient facts to state a cause of action against Allstate is not foreclosed upon by the lack of allegations or any compelling argument provided by the moving papers, the court intends to grant leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/11/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Felicia Mesa v. Martin Ruff***
Superior Court Case No. 23CECG01769

Hearing Date: August 12, 2026 (Dept. 501)

Motion: By Plaintiff Felicia Mesa for Order to compel Defendant ASM Global Fresno, LLC's Initial Responses Form Interrogatories-General, Set One; Form Interrogatories-Employment Law, Set One; Special Interrogatories, Set One; Requests for Production, Set One; to Deem Requests for Admission, Set One; and Request for Sanctions

Tentative Ruling:

Motion is moot. Defendant ASM Global Fresno, LLC provided responses to the discovery requests.

To grant relief to ASM Global Fresno, LLC's request for waiver of discovery objections.

To deny the request for sanctions.

Explanation:

Plaintiff, Felicia Mesa ("Mesa" or "plaintiff") makes this motion to compel Form Interrogatories-General, Set One; Form Interrogatories-Employment Law, Set One; Special Interrogatories, Set One; Requests for Production, Set One; and Requests for Admission, Set One, from defendant ASM Global Fresno, LLC. ("ASM" or defendant.) Plaintiff further seeks monetary sanctions against ASM and/or its counsel of record in the amount of \$9,060.00. Plaintiff propounded all discovery on ASM on April 29, 2025, without response. (Mesa' Moving Papers, pg. 4:25-28.)

At the time that the lawsuit in this matter was filed, defendant's attorney, Steven Kroll was a partner of the law firm Bent Caryl & Kroll, LLP and his email address was skroll@bcklegal.com. On April 4, 2025, Kroll left Bent Caryl & Kroll, LLP to start his own law firm Kroll Law, P.C., with a new email address. Kroll served plaintiff's counsel by mail with a Form MC-040, Notice of Change of Address or Other Contact Information, indicating among other things, his new firm name and mailing address, as well as his new email address (skroll@krollpc.com). After leaving Bent Caryl & Kroll, LLP, Kroll did not have access to his skroll@bcklegal.com email account. (Kroll Decl., ¶¶3-6, Ex. A.)

Service

Kroll argues that Mesa's motion should be denied as ASM was never properly served. (ASM's Opposition Papers, pp. 3:13-4:14.)

Electronic service is authorized with conditions, such as express consent or court order. (Code Civ. Proc. § 1010.6; Cal. Rules of Court, rule 2.251(a).) “A party or other person whose electronic service address changes while the action or proceeding is pending must promptly file a notice of change of address electronically with the court **and must serve this notice electronically on all other parties and all other persons required to be served.**” (Cal. Rules of Court, rule 2.251(g)(1), emphasis added.)

Here, Kroll declares he informed plaintiff's counsel of this change of contact information through written mail (Kroll Decl., ¶15), rather than electronically informing plaintiff's counsel. Because of Kroll's failure to comply with Rules of Court, rule 2.251(g)(1), where Kroll, admittedly did not **electronically** notify plaintiff's counsel of his change of his email address, Mesa properly served ASM, electronically.

Motions to Compel

The motion to compel is moot as ASM served complete, verified responses to the five discovery requests that are the subject of Mesa's motion to compel responses to discovery requests. (Kroll Supplemental Decl., ¶13, Ex. B.)

Waiver of Discovery Objections

ASM requests relief from waiving objections with respect to the discovery owed. (ASM's Opposition Papers, pg. 4:15-24.) As mentioned above, ASM served complete, verified responses to the five discovery requests that are the subject of Mesa's motion to compel responses to discovery requests. (Kroll Supplemental Decl., ¶13, Ex. B.)

A responding party can move the court for relief from waiving objections by (1) serving responses in substantial compliance and (2) demonstrating that the failure to serve responses was the result of mistake, inadvertence or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(1) and (2); 2031.300, subd. (a)(1) and (2).)

As mentioned above, ASM served complete, verified responses to the five discovery requests that are the subject of Mesa's motion to compel responses to discovery requests. (Kroll Supplemental Decl., ¶13, Ex. B.) Furthermore, Kroll has demonstrated “mistake, inadvertence or excusable neglect.” Kroll provided notice to plaintiff's counsel that he was switching firms, and that his email had changed. He did not receive the requests for discovery where he no longer had access to his old email account.

Accordingly, the Court grants ASM's request for relief from waiving any objections to the discovery requests.

Sanctions

Here, Mesa seeks sanctions in the amount of \$9,060.00.

If anyone engages in conduct that is a misuse of the discovery process, the Court may impose reasonable monetary sanctions, “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the

